

1 **SENATE FLOOR VERSION**

2 April 22, 2025

3 ENGROSSED HOUSE
4 BILL NO. 1052

By: Kelley of the House

5 and

6 Green of the Senate

7
8 An Act relating to fire departments; amending 11 O.S.
9 2021, Section 29-102, which relates to activity
10 reports from city fire departments; directing that
11 reports utilize the National Emergency Response
12 Information System; directing reports to be completed
13 within forty-eight hours of incident; directing
14 certain charitable corporations to submit reports
15 utilizing the National Emergency Response Information
16 System; providing report contents; requiring reports
17 to be submitted within forty-eight hours of incident;
18 amending 19 O.S. 2021, Section 901.7a, which relates
19 to activity reports from fire protection districts;
20 directing fire chief to utilize the National
21 Emergency Response Information System; requiring
22 reports be completed within forty-eight hours of
23 incident; providing for codification; and providing
24 an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 11 O.S. 2021, Section 29-102, is
amended to read as follows:

Section 29-102. All cities having a paid fire department shall
have one full-time fire chief who shall supervise and administer the
fire department in accordance with the policies and procedures

1 prescribed by the governing body or by the city manager. The fire
2 department shall be under the direction and control of the fire
3 chief who shall not serve as fire chief and also as police chief,
4 city manager, mayor or any other position that impairs the ability
5 to perform the duties of a fire chief. The fire chief, whether
6 permanent or interim, of any paid municipal fire department shall
7 have had at least three (3) years' actual experience as a paid fire
8 fighter before assuming the position of fire chief. It shall be the
9 duty of the fire chief to file the appropriate activity ~~report forms~~
10 reports utilizing the National Emergency Response Information System
11 (NERIS) with the Office of the State Fire Marshal in Oklahoma City
12 ~~on an annual basis.~~ The activity report forms ~~shall be designed by~~
13 ~~the State Fire Marshal and~~ shall include, but not be limited to, the
14 amount of property and vehicle fire loss, types of fires,
15 inspections and investigations that occurred. The report shall
16 include notification of all fire-related civilian deaths and
17 injuries in the respective jurisdiction and of fire fighter deaths
18 in the line of duty and of fire fighter injuries in the line of duty
19 requiring the services of a hospital or physician or both, and these
20 fire-related burn injuries and death reports shall be completed
21 within forty-eight (48) hours of the incident.

22 SECTION 2. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 595 of Title 18, unless there is
24 created a duplication in numbering, reads as follows:

1 Any charitable corporation formed in an unincorporated area for
2 the purpose of providing either a volunteer or a full-time fire
3 department, such as mentioned in Section 592 of Title 18 of the
4 Oklahoma Statutes, shall be required to file the appropriate
5 activity reports utilizing the National Emergency Response
6 Information System (NERIS) with the Office of the State Fire Marshal
7 in Oklahoma City. The activity report forms shall include, but not
8 be limited to, the amount of property and vehicle fire loss, types
9 of fires, inspections, and investigations. The report shall include
10 notification of all fire-related civilian deaths and injuries in the
11 respective jurisdiction and of firefighter deaths in the line of
12 duty and of firefighter injuries in the line of duty requiring the
13 services of a hospital or physician or both, and these fire-related
14 burn injuries and death reports shall be completed within forty-
15 eight (48) hours of the incident.

16 SECTION 3. AMENDATORY 19 O.S. 2021, Section 901.7a, is
17 amended to read as follows:

18 Section 901.7a. All Fire Protection Districts having more than
19 two full-time paid firefighters shall have one full-time fire chief
20 who shall supervise and administer the fire protection district in
21 accordance with the policies and procedures prescribed by the board
22 of directors. The fire protection district shall be under the
23 direction and control of the fire chief. The fire chief, whether
24 permanent or interim, of any paid or combination fire protection

1 district shall have had at least three (3) years actual experience
2 as a paid firefighter before assuming the position of fire chief.
3 During the initial transition from a volunteer fire protection
4 district to one having more than two full-time firefighters, the
5 paid fire chief shall have had at least three (3) years of
6 experience as a paid firefighter or at least five (5) years of
7 experience as a volunteer fire chief officer with that department
8 before assuming the position of paid fire chief. The board may add
9 additional requirements to the position as necessary.

10 1. The fire chief:

- 11 a. shall be at the head of the department, subject to the
12 laws of the State of Oklahoma, rules of the board of
13 directors and the rules and regulations herein
14 adopted,
- 15 b. shall be held responsible for the general condition
16 and efficient operation of the department, the
17 training of members and the performance of all other
18 duties imposed upon him or her by law or the board of
19 directors,
- 20 c. may inspect or cause to be inspected by members of the
21 department, the fire hydrants, cisterns and other
22 sources of water supply at least twice a year,
- 23 d. shall maintain a library or file of publications on
24 fire prevention and fire protection and shall make use

1 of the library or file to the best advantage of all
2 members,

3 e. shall make every effort to attend all fires and direct
4 the officers and members of the fire department in the
5 performance of their duties,

6 f. shall see that the citizens are kept informed on fire
7 hazards within the boundaries of the department and on
8 the activities of the department,

9 g. shall see that each fire is carefully investigated to
10 determine its cause, and in the case of suspicion of
11 incendiarism shall notify proper authorities. The
12 fire chief shall secure and preserve all possible
13 evidence for future use in the case of a suspicious
14 incendiarism, and

15 h. shall file the appropriate activity ~~report forms~~
16 reports utilizing the National Emergency Response
17 Information System (NERIS) with the Office of the
18 State Fire Marshal in Oklahoma City ~~on an annual~~
19 ~~basis~~. The activity report forms ~~shall be designed by~~
20 ~~the State Fire Marshal and~~ shall include, but not be
21 limited to, the amount of property and vehicle fire
22 loss, types of fires, inspections and investigations.
23 The report shall include notification of all fire-
24 related civilian deaths and injuries in the respective

1 jurisdiction and of firefighter deaths in the line of
2 duty and of firefighter injuries in the line of duty
3 requiring the services of a hospital or physician or
4 both, and these fire-related burn injuries and death
5 reports shall be completed within forty-eight (48)
6 hours of the incident.

7 2. Assistant fire chief. In the absence of the fire chief, the
8 assistant fire chief on duty shall command the department and be
9 held responsible therefore in all respects with the full powers and
10 responsibilities of the fire chief.

11 3. Company officers. The company officers shall be selected
12 upon their ability to meet the following requirements:

- 13 a. knowledge of firefighting,
- 14 b. leadership ability, and
- 15 c. knowledge of firefighting equipment.

16 SECTION 4. This act shall become effective November 1, 2025.

17 COMMITTEE REPORT BY: COMMITTEE ON LOCAL AND COUNTY GOVERNMENT
18 April 22, 2025 - DO PASS
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